

fore new judges, is introductory of a new law, by having conuſance of error in the exchequer, which ſhall be reverſed in the exchequer chamber before the chancelour and treaſurer, or calling to them two judges, there the chancelour and treaſurer are only judges in the writ of error, and ſo in the like. But it is clear that the two juſtices in the ſtar-chamber are judges, and have voices, as it hath been often reſolved, and daily experience teacheth. And further to clear this point, if the juſtices ſhould be but aſſiſtants and no judges in the ſtar-chamber, for that they are to be called, &c. then, and for the ſame reaſon ſhould neither lord ſpiritual nor temporal, nor other of the privy counſell be judges, nor have voices in the court of ſtar-chamber. And therefore the ſudden opinion in 8 H. 7. and of others not obſerving the ſaid diſtinction between acts declaratory of proceedings in an ancient court, and acts introductory of a new law in raiſing of a new court, is both contrary to law, and continually experience.

8 H. 7. 13.
Flow. Com. 393.

The ſecond concluſion is, that the act of 3 H. 7. being in the affirmative is not in ſome things purſued. For where that act directeth that the bill or information ſhould be put to the lord chancelour, &c. all bills and informations in that court are conſtantly and continually directed to the kings majeſty, as they were before the ſaid act; and it is a good rule, that where the act of 3 H. 7. is not purſued, there (if there be many judiciall preſidents in another fort) they muſt have warrant from the ancient court; and yet it is good (as much as may be) to purſue this act, there being no greater aſſurance of juriſdiction then an act of parliament. And where there be no ſuch preſidents, then the ſtatute as to the judges muſt be purſued: and that was the reaſon that in default of others, Sir Chriſtopher Wray chief juſtice of England for a time was made lord privy ſeal to ſit in the ſtar-chamber, *ne curia deſiceret in juſtitia exhibenda*.

[63]

Thirdly, that this act being (as hath been ſaid) in the affirmative, and enumerating divers particular offences, albeit (injuries) is a large word, yet that court hath juriſdiction of many other, as is manifeſt by authority, and daily experience, and this muſt of neceſſity be in reſpect of the former juriſdiction.

Fourthly, this act in one point is introductory of a new law, which the former court had not, viz. to examine the defendant, which being underſtood after his anſwer made, to be upon oath upon interrogatories, which this ancient court proceeding in criminal cauſes had not, nor could have but by act of parliament, or preſcription, the want whereof eſpecially in matters of frauds and deceits (being like birds cloſely hatched in hollow trees) was a mean that truth could not be found out, but before the ſtatute the anſwer was upon oath.

Fifthly, where it is ſaid in this act, And to puniſh them after their demerits after the form and effect of ſtatutes made, &c. The plaintife may chooſe whether he will inform upon ſuch ſtatutes as this act directeth, or for the offence at the common law, as he might have done before this act, which proveth that this act taketh not away the former juriſdiction.

6. Laſtly, that the juriſdiction of this court dealeth not with any offence, that is not *malum in ſe*, againſt the common law, or *malum prohibitum*, againſt ſome ſtatute.

It